

SENATE No. 3122

The Commonwealth of Massachusetts

—
In the One Hundred and Ninety-Fourth General Court
(2025-2026)
—

SENATE, June 15, 2026.

The committee on Aging and Independence to whom was referred the petition (accompanied by bill, Senate, No. 3056) (subject to Joint Rule 12) of Michael O. Moore, Patricia D. Jehlen, Robyn K. Kennedy, John J. Marsi and others for legislation relative to medication administration in rest homes, report the accompanying bill (Senate, No. 3122).

For the committee,
Patricia D. Jehlen

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An Act establishing a task force relative to medication administration in rest homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be a task force to evaluate current best practices and make
2 recommendations to strengthen medication administration in rest homes, as defined in Section 71
3 of Chapter 111 of the General Laws. The task force shall include, but not be limited to, an
4 examination of the following: (i) a review of the current practice of utilizing responsible persons,
5 as defined in 105 CMR 150.001, for medication administration to residents who cannot self-
6 administer medications; (ii) review of other models of medication administration that may be
7 currently in use at rest homes in Massachusetts or other states; (iii) review of other models of
8 medication administration that may be in place in other residential or day programs, including
9 the Medication Administration Program authorized by Section 7 of Chapter 94C of the General
10 Laws that is used in community programs, as defined in 105 CMR 700.001; and (iv) to the extent
11 possible, a review of all operational and financial factors relative to implementing a new system
12 for administering medications in a rest home.

13 (b) The task force shall consist of the secretary of health and human services, or their
14 designee, who shall serve as chair; the commissioner of public health, or their designee; the

15 chairs of the joint committee on aging and independence, or their designees; and 5 members, 3 of
16 whom shall be representatives from the Massachusetts Association of Residential Care Homes,
17 Inc., 2 of whom shall be representatives of LeadingAge Massachusetts, Inc.

18 (c) The task force shall submit a report of its findings, including any recommendations or
19 proposed legislative or regulatory language necessary to carry out its recommendations, to the
20 clerks of the house of representatives and the senate, the house and senate committees on ways
21 and means, and the joint committee on aging and independence not later than December 31,
22 2026.